

Court No. - 39

Case :- WRIT - C No. - 27112 of 2006

Petitioner :- Raj Bahadur

Respondent :- State Of U.P. And Others

Counsel for Petitioner :- B.P. Mishra

Counsel for Respondent :- C.S.C.,Ranjit Saxena,W.H. Khan

Hon'ble Dilip Gupta,J.

Hon'ble Mrs. Sangeeta Chandra,J.

Sri B.P. Mishra, learned counsel for the petitioner has sent an illness slip.

List this petition on 4 August 2017.

Order Date :- 6.7.2017

Akram

(Dilip Gupta,J.)

(Mrs. Sangeeta Chandra,J.)

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Hon'ble Sudhir Agarwal,J.

Hon'ble Rajeev Misra,J.

1. Heard Sri B.P. Mishra, learned counsel for petitioner, learned Standing Counsel for State-respondent nos. 1 to 3 and Sri W.H. Khan, learned counsel for respondent no.4.

2. Admittedly, petitioner defaulted in payment of electricity dues as is evident from order dated 13.7.1998 (Annexure No.3 to writ petition). From record, it appears that, subsequently, some payments were made and, on his request, he was allowed to pay entire due amount in installments but there is nothing on record to show that entire dues have been paid by him. Therefore, a demand notice was issued on 3.2.2006 and thereafter, recovery certificate was issued by Executive Engineer on 20.3.2006, which is under challenge in this petition.

3. Dispute relates to electricity bill and petitioner has statutory alternative remedy for raising his grievance before Consumer Grievance Redressal Forum and Ombudsman under para 7.10(i) of Electricity Supply Code, 2005 (hereinafter referred to as "Code, 2005") read with UPERC (Consumer Grievance Redressal Forum & Ombudsman) Regulations, 2003 (hereinafter referred to as "Regulations, 2003") and thereafter, remedy is provided before Ombudsman under para 7.10(iv) of Regulations, 2003.

4. In view thereof, this writ petition is dismissed on ground of alternative remedy.

Order Date :- 4.7.2019

Ram Murti